

25NWCV03962 25NWCV03962

County: los-angeles

Division: Civil Law and Motion

Department: SEL

Hearing date: 2026-06-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CSEL%2C06%2F30%2F2026

Source SHA-256: 159053e8b5db252d26c010f114f16aec73653d15168c74ea73fd172f5442ec0b

Case Number: 25NWCV03962 Hearing Date: June 30, 2026 Dept: SEL

TENTATIVE ORDER

Plaintiff Cindy Dempsey's

Motion for Trial Preference is DENIED without prejudice.

Plaintiff to give notice.

Background

This is an action for premises

liability regarding premises located at 13806 La Mirada Blvd., La Mirada, California ("Subject Premises"). On November 7, 2025, Plaintiff Cindy Dempsey ("Plaintiff") filed this action against Defendants City of La Mirada, USA Swimming, Inc., La Mirada Armada, Southern California Swimming, Inc., (collectively, "Defendants") and Does 1 to 50. The Complaint alleges that Plaintiff tripped over unsecured electrical cords at the Subject Premises, where she was attending her granddaughter's swimming meet. The Complaint alleges two causes of action for 1) Negligence and 2) Premises Liability.

Plaintiff now moves for a trial

preference pursuant to Code of Civil Procedure section 36, subdivision (a).

Legal Standard

"On petition of any party over

70, [Code of Civil Procedure] section 36, subdivision (a), provides that the granting of calendar preference is mandatory in some circumstances." (Fox v. Superior Court ("Fox") (2018) 21 Cal.App.5th 529, 533.) A court must

grant a trial preference under Code Civil Procedure section 36, subdivision (a) where the following two factors are present: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Ibid.)

Where a motion for trial preference is granted, the clerk shall set the case for trial not more than 120 days from that date. (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 694.)

Discussion

Plaintiff requests a trial preference under Code of Civil Procedure section 36, subdivision (a). Plaintiff is currently 73 years old. (Erakat Decl., ¶ 5.) Plaintiff has a substantial interest in this action as the sole plaintiff. Plaintiff asserts that a trial preference is necessary to prevent prejudice to her interest in the litigation due to her pre-existing health conditions and injuries she suffered from as a result of the subject incident. Specifically, Plaintiff has a history of atrial fibrillation, angina pectoris, heart disease, hypertension, Stage 3b chronic kidney disease, and heart murmur. (Erakat Decl., ¶ 6.) As a result of the subject incident, Plaintiff suffered an acute left hip intertrochanteric fracture and an acute left proximal humerus fracture. (Erakat Decl., ¶ 7.) After being released from rehabilitation, Plaintiff continues to suffer from pain. (Ibid.) Plaintiff has lost range of motion in her left arm and needs to use a cane on occasion. (Ibid.) Plaintiff's health, mobility, activity level, and independence have been limited, and she is in constant fear of another fall. (Ibid.)

In opposition, Defendants argue that Plaintiff fails to submit sufficient evidence to entitle her to a trial preference. Specifically, Defendants note that "Plaintiff provides no physician declaration, no medical opinion, no evidence of diminished life expectancy, no evidence of a terminal condition, and no evidence that Plaintiff's condition is expected to deteriorate in a manner that threatens her ability to participate in the litigation process." (Opp., 5:21-24.)

Defendants argue that Plaintiff's own testimony demonstrates her independence and improvement. Plaintiff has testified that she "can do most things now." (Bathh Decl., ¶ 4, Exh.

A, Dempsey Depo.,130:1-25.) For example, Plaintiff has testified that she cooks, does laundry, and engages in activities intended to improve her physical condition. (Bathh Decl., ¶ 4, Exh. A, Dempsey Depo.,130:1-131:23.) Plaintiff also cares for her granddaughter and drives. (Bathh Decl., ¶¶ 5-6, Exh. A, Dempsey Depo., 134:1-135:8.) Such testimony demonstrated that Plaintiff remains active and is capable of participating in the litigation process.

In reply, Plaintiff argues that counsel's declaration regarding Plaintiff's health condition is sufficient evidence to support a trial preference. Plaintiff's testimony that her condition has been improving is not enough to defeat the request for trial preference.

As pointed out by both parties, that a motion for trial preference under subdivision (a) does not require a doctor's declaration and "may be supported by nothing more than an attorney's declaration based upon the information and belief as to the medical diagnosis and prognosis of any party." (Fox, supra, 21 Cal.App.5th at p. 534, internal citation omitted [explaining that an attorney declaration under CCP § 36.5 can consist entirely of hearsay and conclusions].)

The Court acknowledges Plaintiff's age and health conditions. However, the Court is not persuaded at this time that Plaintiff's health is such that she would be prejudiced if a trial preference is not granted. It appears from both Plaintiff's counsel's declaration and from Plaintiff's testimony that Plaintiff's condition has been improving since the subject incident. Considering all evidence, the Court is not convinced that Plaintiff's current and future condition would prevent her from participating in the case.

Accordingly, Plaintiff's Motion for Trial Preference is denied without prejudice.